

Multiple Choice (10 marks)

1. Where a client accepts the services of an attorney without an agreement concerning the amount of the fee, there is
 - (a) An implied-in-fact contract.
 - (b) An implied-in-law contract.
 - (c) An express contract.
 - (d) No contract.
2. Which of the following is not a warrantless search exception?
 - (a) Cold pursuit
 - (b) Incident to a lawful arrest
 - (c) Plain view
 - (d) Stop and frisk
3. With the intent to commit a felony therein.
 - (a) Contingent remainders
 - (b) Executory interests
 - (c) Vested remainders subject to open
 - (d) Reversions
4. There is a grand jury proceeding underway for a local businessman. What is not true about grand jury proceedings?
 - (a) The proceedings are conducted in secret.
 - (b) There is no right to counsel.
 - (c) There is a right to Miranda warnings.
 - (d) There is no right to have evidence excluded.
5. Which of the following is a legislative act that inflicts punishment without a trial?
 - (a) Bill of attainder
 - (b) Ex post facto law
 - (c) Statutes
 - (d) Ordinances

True / False (10 marks)

Answer True or False

6. True or False: The necessary and proper power can stand alone as a constitutional basis for federal law without any other authority.
7. True or False: A merchant's irrevocable written offer can last indefinitely if consideration is provided.
8. True or False: A defendant with an I.Q. of 85 is automatically considered incapable of meeting the reasonable person standard in negligence cases.
9. True or False: A substantive due process problem arises when individuals are treated differently under the law without justification.
10. True or False: The best evidence rule generally does not apply to collateral matters, public records, or when the document's contents are not in dispute.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the constitutional requirements for the termination of a parent's custody rights and welfare benefits, focusing on the necessity of prior notice and evidentiary hearings.
12. Discuss the legal principles governing bid retraction in auctions, particularly in the context of a competitor's liquidation, and analyze their implications for bidders like Fernandez.

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